

Court No. - 39

Case :- WRIT - C No. - 1104 of 2016

Petitioner :- Maa Kaila Foundries Pvt. Ltd.

Respondent :- Dakhsinanchal Vidyut Vitran Nigam Ltd. And 4 Others

Counsel for Petitioner :- Anand Kumar Singh, Shri Prakash Dwivedi

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Baleshwar
Chaturvedi

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

This petition seeks the quashing of the recovery proceedings that have been initiated against the petitioner on account of failure to deposit the electricity dues within the stipulated time.

At the time of hearing of this petition Sri Anand Kumar Singh, learned counsel for the petitioner states that the petitioner is ready to deposit the amount in instalments.

Sri Baleshwawar Chaturvedi, learned counsel appearing for the respondent Corporation states that the petitioner can avail of the instalment facility under Clause 6.14 of the Electricity Supply Code 2005. This clause provides that a licensee may extend the facility of instalments to those consumers who are in financial distress but no waiver of surcharge shall be allowed.

The petitioner, therefore, can take recourse to the provisions of Clause 6.14 of the Electricity Supply Code. The Court, therefore, decline to entertain this petition. However, if an application is filed by the petitioner for availing this facility, the respondent shall pass an appropriate order expeditiously.

The petition is, accordingly, dismissed.

Order Date :- 14.1.2016

M.A.Ansari

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)